

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: March 13, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER GRANTING JOINT MOTION TO EXTEND TIME TO FILE ANSWER

On March 11, 2024, the parties filed a joint motion to extend time for Respondents to file their answer, citing their intention to file a partial motion to dismiss and observing that the Commission's rules and the Federal Rules of Civil Procedure are unclear as to the effect of a *partial* motion to dismiss on the deadline to file an answer. The applicable Commission rule suspends the due date for a respondent's answer until 10 days after a ruling on a motion to dismiss. 46 C.F.R. § 502.62(b)(1). Respondents' motion requests an extension to file their answer until 10 days after a decision on the partial motion to dismiss – the same timeframe as Commission Rule 62.

The majority view in the district courts is that a partial motion to dismiss is treated the same as a motion to dismiss the complaint in its entirety under FRCP 12(a)(4)(A), which (like Commission Rule 62(b)(1)) suspends the time to file an answer until after the motion to dismiss is resolved. *See Finnegan v. Univ. of Rochester Med. Ctr.*, 180 F.R.D. 247, 249–50 (W.D.N.Y. 1998) (collecting cases and observing case-management and judicial-economy benefits of majority rule). Consistent with the majority rule, and in the interest of economy and sound case management, I will apply the deadline-suspension provision of Rule 62(b)(1) to Respondent's anticipated partial motion to dismiss.

The motion is therefore GRANTED; Respondents will have 10 days after service of an order on the partial motion to dismiss to file their answer.

ALEX
CHINTELLA

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Alex M. Chintella
Administrative Law Judge